

HEADNOTE

“In an appeal against an order pursuant to Rule 302.1 RoP, a request by the Applicants applied for on the last day of the time periods under R. 224.1(b) and R.224.2(b) RoP for shortening of a time period pursuant to R.9.3 (b) RoP for lodging the Statement of response has been dismissed in view of the interests of the Respondent and principles of due process, , even though this could mean that in the proceedings before the Court of First Instance the Statement of defense has to be lodged before a decision in the appeal proceedings has been rendered.”

COURT
Court of Appeal Luxembourg

PROCEEDINGS
Procedural order

PATENT
EP 3611989

Method and apparatus for transmitting
wireless local area network information

KEYWORDS

Expedition of the appeal R.225 (e)

R.9.3 (b) RoP

Applicants/Appellants/Defendants

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Rule 302 Plurality of claimants or patents

SUMMARY

The Court of Appeal in Luxembourg issued a procedural order. The patent at issue relates to a method and apparatus for transmitting wireless local area network information. According to the headnotes of the decision, the court dismissed the applicants' request to shorten the deadline for filing their statement of response, even though they submitted it on the last permissible day, because the court prioritized the respondent's procedural rights and the principles of fairness in the proceedings. This outcome meant that the defendant's statement of defense could be required before the appeal decision was finalized.